

SOFTWARE DEVELOPMENT AGREEMENT

This Software Development Agreement (the "Agreement") is entered into as of July 10, 2026 (the "Effective Date") by and between Foundry Digital Studio LLC ("Developer") and Pemberton Community Bank ("Customer").

1. Services

Developer shall design, build, and deliver a customer-onboarding web application per the functional specification in Exhibit A, using an agile delivery model with two-week sprints. Work product is a work made for hire; Developer retains rights only in pre-existing tools and libraries, which are licensed to Customer on a perpetual, royalty-free basis.

2. Fees and Payment

The fees for the services are set forth in Schedule A below. Undisputed invoices are payable according to the payment terms stated per service line. Late payments accrue interest at 1.0% per month or the maximum rate permitted by law, whichever is less.

Schedule A — Fee Schedule

Service line	Fee type	Fee (\$)	Payment terms
Sprint team (4 FTE), per sprint	Unit	38,000.00	Net 15, invoiced per sprint
Discovery & design phase	Fixed	29,500.00	50% on start, 50% on approval
Security review & penetration test	Fixed	12,000.00	Net 30 from report delivery
Post-launch hypercare, 60 days	Fixed	18,500.00	Net 30 from go-live
Change requests beyond backlog	T&M	185.00/hr	Monthly in arrears

3. Term and Termination

This Agreement commences on the Effective Date and continues for an initial term of 10 months, renewing automatically for successive 3-month periods unless either party gives 30 days' notice of non-renewal. Either party may terminate for material breach not cured within 15 days of written notice.

4. Limitation of Liability

Except for indemnification obligations and breaches of confidentiality, each party's aggregate liability under this Agreement is capped at the fees paid or payable in the twelve (12) months preceding the event giving rise to the claim.